

Namita Katara v. Managing Director, Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 3 January 2017 · Writ-C No. 61635 of 2016 · **Writ disposed of; Executive Engineer directed to decide the Clause 6.5 representation preferably within one month, without adjudication of merits.**

HEADNOTE

A consumer's writ seeking a decision on a pending Clause 6.5 representation against disputed bills is disposed of by directing the Executive Engineer, DVVNL, Mathura to decide that representation expeditiously, preferably within one month of a certified copy. The Court does not adjudicate the merits.

FACTUAL SUMMARY

Namita Katara filed a writ complaining that her representation against disputed electricity bills, lodged with the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd., Mathura under Clause 6.5 of the U.P. Electricity Supply Code, 2005, had not been decided. That inaction was her only grievance. Counsel for the respondents stated that the representation would be decided at an early date. The Division Bench then disposed of the petition on that footing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending representation against disputed bills

HOLDING

Where the consumer's sole grievance is that a Clause 6.5 representation against disputed bills remains undecided, the writ is disposed of by directing the Executive Engineer to decide that representation expeditiously, preferably within one month of a certified copy, without the Court adjudicating the merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DISPUTED BILLS AND THE CLAUSE 6.5 REPRESENTATION

The Court expressly declined to adjudicate the merits and left the Executive Engineer to decide in accordance with law. ¶ 1